

COMPLAINT TO THE GOVERNOR'S ADVOCACY OFFICE

Oregon Department of Human Services —Administrative Misconduct Review and Policy-Compliance Complaint

Complainant: Ash Le' Penn (Mother), *In Propria Persona*

Email: ashlepenn.ap3@gmail.com

Child: A.D. — Al-mira Amira Jazmine Davis

DOB: June 23, 2011

Matter: Washington County Circuit Court

Juvenile Department

Case No. 25JU04261

September 11, 2026

Submitted to:

ODHS Governor's Advocacy Office

500 Summer Street NE

Salem, OR 97301

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RE: Supplement To Complaint Submitted August 26, 2026: Missed Agency Deadlines

This supplement is submitted to the Governor's Advocacy Office in its statutory capacity as the Office of Children's Advocate under ORS §417.810 and §417.815. The Children's Advocate has a statutory duty to investigate Child Protective Services actions, including whether ODHS complied with mandatory safety-planning and preventive-service requirements before removing A.D. from Mother's care.

Because the GAO is functionally independent of the child welfare programs under its review and reports both to the ODHS Director and to the Office of the Governor, Mother requests that this complaint be reviewed as an independent administrative investigation rather than as an internal program appeal or customer-service inquiry. The issues presented in the two submitted complaints — materially false court-facing representations, failure to identify a Mother-specific, current, safety threat, failure to develop the least intrusive plan, and failure to consider available relatives before removal — are precisely the type of CPS conduct that the Children's Advocate is statutorily charged to examine.

Nothing in this supplement concedes that ODHS had a lawful basis to remove A.D., continue substitute care, impose access-based conditions, or characterize Mother as refusing to engage. Nothing requests that GAO vacate, alter, or disturb a juvenile-court order. Mother requests administrative findings concerning ODHS conduct, records, policies, supervision, and current decision-making.

Part I

A Lack of Safety Finding Should Not Result From An Inquiry.

ODHS's authority to require one or more of its three types of safety plans depends upon a prior, documented determination that a child is presently unsafe or that an impending-danger safety threat exists. An unresolved inquiry into home access—particularly where the parent has requested additional information and the agency is seeking greater access based on its own preference—does not, by itself, constitute a safety finding or establish that a child is unsafe. Nor can the absence of a completed safety determination be treated as though a safety threat had already been established. A safety finding requires an affirmative and supported agency determination that a particular present-danger or impending-danger safety threat exists. Once that determination has been made, OAR 413-015-0432 requires a safety plan tailored to managing the identified threat, and the plan must specifically describe the present-danger or impending-danger safety threat on which it is based. Thus, a safety plan follows a completed safety determination; it is not a mechanism by which ODHS obtains access or parental cooperation in order to determine whether a safety threat exists in the first place.

The sequence therefore matters: ODHS must identify the safety threat before it may condition a parent's "cooperation" on intrusive home access or the relinquishment of constitutional protections afforded the home, such as the Fourth Amendment protection against warrantless home entry. ODHS cannot substitute uncertainty for that required predicate by labeling an unresolved concern a "safety finding" and then making Mother's consent to intrusive home access the condition for determining whether the alleged threat exists. Unless ODHS has identified and documented a present-danger or impending-danger safety threat, it has not established the predicate for imposing a safety plan to manage that threat. The agency may not use the safety plan, or Mother's acceptance of its access demands, to manufacture the predicate that must precede the plan in the first instance.

The agency may not reverse that sequence: it cannot demand access in order to determine whether a threat exists and then characterize Mother's refusal of that demand as proof that the unidentified threat requires continued safety-plan restrictions.

The required analysis *begins* with facts, not with a proposed intervention. Under OAR 413-015-0428, the CPS worker must determine how the identified impending-danger safety threat is occurring within the particular family and use that understanding to develop the least intrusive plan capable of managing that identified threat.

The issue in this case is not merely that the May 6, 2026 CF1149 was first communicated approximately 242 days after A.D.'s removal, or that the updated Ongoing Safety Plan, made effective August 13, 2026, was not communicated to Mother until September 10, 2026. Nor is the defect cured if ODHS can now identify a date on which it decided that recurring scheduled and unscheduled home entry would be desirable or useful. ODHS's authority to impose and rely upon safety-plan conditions depends upon satisfaction of the conditions precedent established by its own rules, including:

1. An affirmative, contemporaneous, and documented determination of a particular present-danger or impending-danger safety threat;
2. A factual and particularized explanation of how that identified threat was occurring in this family; and
3. A safety plan narrowly tailored to manage the identified threat, using the least intrusive measures sufficient to protect A.D.

The order of those requirements is controlling. A safety plan is the response to an identified safety threat; it is not an investigative device by which ODH may obtain access to determine whether a threat exists. Thus, ODHS cannot justify recurring scheduled or unscheduled home entry by asserting that access is necessary to decide whether A.D. might be at risk, and then characterize Mother's refusal to consent to that access as the reason the alleged, unidentified risk remains unresolved. If ODHS contends that Mother presents a current impending-danger safety threat, it must identify the particular family behavior, condition, or circumstance at issue and document how it satisfies all five safety-threshold criteria required by OAR 413-015-0425. This concern is reinforced by the June 29, 2026 Permanency Judgment: although it continued reunification and stated that Mother "has refused to engage," it left the Mother-services, Mother-progress, and projected-return-date fields blank (supporting Mother's position that ODHS had not - because it could not - supply this information to the court in the absence of a documented safety threat). The judgment therefore records a conclusion about Mother's alleged non-engagement without stating the concrete Mother-specific safety condition, service pathway, measurable progress standard, or return benchmark that would explain why A.D. could not safely return to Mother at that time due to Mother's non-engagement with an already established plan.

That distinction is material here. The May 6, 2026 CF1149 states that ODHS had received unspecified "reports of violence occurring in the home," while expressly acknowledging that its assessment was "still ongoing" and that ODHS found it "challenging to determine" whether A.D. would be exposed to violence if returned to Mother's home. Yet the same form treats Mother's refusal to permit ODHS and safety providers to enter her home as both the reason ODHS remained unable to determine whether a safety threat existed and the basis for asserting that A.D. faced a current, non-speculative, severe threat of harm likely to be realized in Mother's home. Those propositions cannot logically establish the same predicate. If the assessment remained unresolved because ODHS lacked sufficient information to determine whether A.D. would be exposed to violence, that unresolved uncertainty does not itself establish that a present-danger or impending-danger safety threat existed. Nor does Mother's refusal to permit warrantless or otherwise intrusive home access transform the agency's inability to complete its inquiry into evidence that the alleged threat existed.

ODHS has employed an impossible scenario that makes reunification nearly just as impossible for Mother. The narrative of barriers for return asserted by the agency has shifted from a parent's absenteeism, a child's alleged statement of self harm, to an unresolved assessment and unspecified reports and include a conclusory and, under the agency's current position, clearly speculative assertion of a current severe safety threat, while simultaneously relying on Mother's refusal of home access to explain why the assessment could not be resolved. what **The result is circular: the alleged safety threat is used to justify the demand for home access, while the absence of home access is used to support the existence of the alleged safety threat.** That is materially different from identifying a particular safety threat first and then imposing a safety plan specifically designed to manage that established threat.

Accordingly, GAO should determine whether ODHS made and documented a valid Mother-specific safety determination before relying on the CF1149 to impose recurring scheduled and unscheduled home entry, provider-directed behavioral restrictions, approval of household contacts, and other return conditions. If ODHS cannot identify the underlying completed safety determination and contemporaneous factual record, GAO should determine whether ODHS instead treated

unresolved uncertainty, nonconsent to access, negative characterization of Mother's exercise of rights, and an incomplete inquiry as substitutes for the safety finding required to support those conditions.

A The Delayed Home-Access Condition Requires a Chronological Explanation

ODHS now treats recurring access to Mother's home as a central condition of A.D.'s return. In substance, ODHS is requiring Mother to waive her right to refuse warrantless governmental entry into her home as the price of exercising her parental interest in reunification and return. Nothing identified in the agency's safety-planning rules authorizes ODHS to impose such an access-based condition absent a specific, documented safety threat involving A.D. that is particularized, current, non-speculative, and reasonably likely to result in harm without intervention.

As the Oregon Court of Appeals has recognized, the Department's authority to investigate a claim of child abuse does not, by itself, authorize warrantless entry into a residence.¹ ODHS may not convert its asserted need to investigate into authority to require Mother to surrender constitutional protections as a condition of reunification, particularly where ODHS has not identified the Mother-specific present-danger or impending-danger safety threat that the proposed access condition is supposed to manage. The May 6, 2026 CF1149 states that Mother must permit ODHS regular and ongoing access to the home, both scheduled and unscheduled, and must permit ODHS and safety providers to enter and monitor the home. The CF1149 further characterizes Mother's refusal of that access as a barrier to reunification and states that unresolved reports of violence and the ongoing assessment made it challenging for ODHS to determine whether A.D. would be exposed to violence if returned.

The chronology requires explanation. If entry into Mother's home was truly necessary to assess or manage an identified Mother-specific safety threat, ODHS should be able to identify when that need was first determined, what particular safety threat required home access, what facts connected that threat to anticipated harm to A.D., and what timely, defined, and less-intrusive assessment or safety arrangement ODHS offered shortly after the September 6, 2025 custody event. The presently identified record instead reflects that the February 2026 Family Report stated that no conditions for return had been determined, while the first identified written conditions making recurring scheduled and unscheduled home access central to return appeared in the CF1149 effective May 6, 2026.

This is not a request for GAO to decide that ODHS was entitled to unrestricted entry into Mother's home. Rather, GAO should determine whether ODHS timely identified a particularized safety concern, timely explained why home access was necessary to address that concern, and timely offered a defined and proportionate assessment or safety-planning process. If ODHS did not treat home access as a necessary condition near the time of removal or during the early reunification period, GAO should determine what new information, assessment decision, supervisory consultation, or documented safety finding caused ODHS to impose that condition only later.

ODHS is required to, and to date has not, adequately identify a documented, factual basis for the particular conditions for return it has established, including why scheduled and unscheduled home entry is the least-restrictive and necessary condition, and connected to a defined Mother-specific safety concern. GAO should require ODHS to identify:

1. The first date on which ODHS requested access to Mother's home for a safety assessment or safety-plan purpose;
2. The employee who made the request;
3. The precise safety threat that access was intended to assess or manage;
4. The proposed scope, duration, frequency, and purpose of the requested access;
5. Any scheduled appointment, alternative arrangement, safety provider, family-supported plan, or less-intrusive option offered;
6. The assessment number and safety decision associated with the request; and
7. The date, factual basis, and supervisory approval for adding recurring scheduled and unscheduled home access to the May 2026 conditions for return.

¹*State v. Weaver*, 214 Or. App. 633, 168 P.3d 273 (2007), review denied.

Without those record-specific answers, ODHS's later reliance on lack of home access risks functioning not as a response to an identified safety threat, but as a newly created compliance condition used to justify continuing separation. Reunification planning should bear a rational relationship to the jurisdictional findings and should incorporate family resources and solutions where possible.

I ODHS Authority

Mother requests that the GAO consider the agency rule OAR 413-015-0432(1), stating:

If at any time during and upon the conclusion of the CPS assessment the caseworker identifies a safety threat (i.e., determines that the child is unsafe), an initial safety plan, an ongoing safety plan, or a protective action plan must be developed. These plans, which can include the removal of a child from the family, may be part of a safety plan made with the family or may require the caseworker to file a dependency petition in juvenile court.²

ODHS must identify a present-danger or impending-danger safety threat before imposing a safety plan intended to manage that threat. If an assessment does not identify such a threat, the proper administrative response is to close the assessment—not to preserve unresolved uncertainty as an ongoing basis for safety-plan conditions, compelled monitoring, or continued separation. The May 6, 2026 CF1149 does not identify a completed Mother-specific safety finding. Rather, it states that ODHS had received unspecified reports of violence, that the assessment related to this call remained ongoing, and that ODHS found it challenging to determine whether A.D. would be exposed to violence if returned to Mother's home.

ODHS does not identify the date it received such a call of concern, and if it existed on September 6, when the agency exercised emergency protective custody of A.D., or whether the call of concern came before Mother's jurisdictional trial or after. The date of the call of concern is critically important to determining whether or not the agency had an opportunity to plead its concern as a jurisdictional basis so as to constitute a lawful basis as to maintain A.D. out of Mother's care on that basis.

If the alleged belt-discipline matter was the basis for the May 2026 home-access conditions, ODHS must identify when it first concluded that the allegation created a current Mother-specific safety threat requiring recurring scheduled and unscheduled entry into Mother's home. If the allegation was unfounded, unresolved, unrelated to A.D., or arose after September 2025, ODHS must explain why it was used in May 2026 as a basis for characterizing Mother's home as violent or unsafe.

Accordingly, even assuming solely for purposes of administrative review that an appropriately tailored home assessment or monitoring arrangement could be required before return, that later-stated requirement does not explain the preceding period of continued substitute care. The February 2026 Family Report expressly stated that no conditions for return had been determined. GAO should determine what specific Mother-related safety condition ODHS contends prevented return before May 6, 2026; when that condition was identified; what services, assessment, family-supported arrangement, or less-intrusive alternative ODHS offered to address it; and when ODHS first advised Mother in writing that home entry was a prerequisite to reunification.

²See OAR 413-015-0432 to 413-015-0450.

Timing of alleged report	What ODHS should be able to show	What it cannot automatically establish
Before September 6, 2025	Whether the report was known to the responding workers; whether it was assessed; whether it contributed to the emergency decision; and whether it was included in the contemporaneous custody record.	A later-created narrative cannot replace the contemporaneous documentation of the emergency basis or the least-restrictive alternatives considered.
September 6–October 31, 2025	Whether ODHS opened an assessment, completed or extended it, provided notice, and relied on it in the petition, amended petition, or jurisdictional proof.	The agency cannot treat an uninvestigated or unpleaded concern as though it were already a proven Mother-specific jurisdictional basis.
After October 31, 2025	Whether a new assessment was opened; what precise current threat, if any, was identified; and what narrowly tailored safety response was developed.	A later report cannot retroactively justify the September 2025 removal or convert the original jurisdictional allegations into a different, unstated basis.
Still unresolved in May 2026	Why the assessment remained open; its completion deadline; any extensions; supervisory approvals; and the current safety decision.	Mere uncertainty—including a statement that it was “challenging to determine”—is not itself an identified safety threat.

The CF1149 should also be reviewed for internal consistency. Its stated concrete safety event concerns Father’s alleged assault and the resulting no-contact order. Yet the plan imposes separate, unsupported and broad Mother-specific home access and compliance conditions and only identifying an unspecified report of violence, vague reference to an ongoing assessment, and uncertainty about possible exposure to A.D. This, in no way satisfies the threshold necessary to establish a present safety threat with a nexus to Mother’s allegedly risk causing behavior that amounts to a severe threat of harm likely to be realized which would authorize the removal of a child from their home. GAO should determine what Mother-specific safety finding the agency timely identified, if any, which supports each Mother-specific condition and whether ODHS accurately distinguishes Father-related safety threats from alleged Mother-related safety threats. Alternatively, the agency should be required to identify the start and completion of the referenced “open assessment” and the final disposition.

The Oregon Legislative Policy and Research Office’s Child Welfare System in Oregon report explains the critical distinction at issue here: when a CPS assessment does not identify a present-danger or impending-danger safety threat, the appropriate agency action is to close the assessment. An assessment may not remain administratively unresolved and then be used as an indefinite substitute for an actual safety finding.

That principle directly applies to ODHS’s May 6, 2026 CF1149. The form states that ODHS had received unspecified “reports of violence occurring in the home,” but also states that “the assessment is still ongoing” and that, because Mother had not permitted ODHS or safety providers into the home, “it is challenging to determine if Al Mira would be exposed to violence and at risk if she were to return to Ms. Penn’s home.” The CF1149 does not identify the date of an alleged incident, the reporter, the alleged actor, the alleged victim, whether A.D. was present, the CPS assessment number, the assessment disposition, or any completed safety decision specifically concerning Mother.

II Clarification Regarding the “Violence” Label.

Mother does not contend that any physical discipline is categorically beyond agency review. Oregon law permits a parent or legal guardian to use reasonable physical force when reasonably believed necessary to maintain discipline or promote a child’s welfare, provided the force does not constitute statutory abuse.

An allegation that Mother disciplined a child with a belt does not, by itself, establish abuse, violence, a present safety

threat, or a basis for treating Mother's home as unsafe. ODHS must identify the actual alleged conduct, surrounding circumstances, evidence of injury or assault, assessment disposition, and present relevance to A.D.'s safety.

Mother does not contend that ODHS may never assess a report involving physical discipline. However, an allegation that a parent spanked or disciplined a child with a belt does not, standing alone, establish "violence," abuse, neglect, a current safety threat, or a basis for continued separation. Under Oregon law, a parent or legal guardian may use reasonable physical force when and to the extent the parent reasonably believes it necessary to maintain discipline or promote the child's welfare, unless the force constitutes abuse.

III Unresolved Assessment Cannot Function As Open-Ended Safety Threat

The agency may not convert an unresolved question—whether violence *might* occur, whether A.D. might be exposed to violence, or whether ODHS could obtain further information—into an established Mother-specific safety threat. The absence of access does not itself establish that A.D. faced present or impending danger in Mother's care. ODHS policy is clear - if a safety threat is not able to be identified - the assessment is required to close with an "unable to determine" disposition; the agency is acting outside of its delegated authority to maintain out-of-home custody of A.D. on this basis. If ODHS believed a present or impending safety threat existed, it should be able to identify the precise behavior, condition, or circumstance; the source and date of the information; the anticipated harm to A.D.; the factual connection between the asserted condition and that harm; the safety decision; and the written safety intervention designed to manage that identified threat.

The date of the alleged "report of violence" is indispensable. ODHS must identify the date and time the report was received; the incident date; the screening determination, assignment to a caseworker to investigate, and the person approved the assessment as well as on what grounds; the assessment number; and every relevant safety decision. Without that information, neither GAO nor Mother can determine whether ODHS contends that the report existed before A.D.'s September 6, 2025 protective-custody event, arose before the October 31, 2025 jurisdictional trial, or arose only afterward.

That chronology determines the limited role the allegation could play. A report known before September 6 should appear in the contemporaneous custody and shelter record if ODHS relied upon it. A report received before the jurisdictional trial should be traceable to an assessment, notice, and, if ODHS relied upon it as a basis for jurisdiction, the pleading and evidentiary record. A report received after the jurisdictional judgment cannot retroactively supply the factual predicate for the September 2025 removal or the original jurisdictional findings. It may support later agency action only if ODHS identifies a completed or properly extended assessment, a specific current Mother-related safety threat, the anticipated harm to A.D., and a safety response tailored to that identified threat. Without that chronology, "ongoing assessment" becomes an unreviewable substitute for a defined Mother-specific safety finding.

Instead, the CF1149, disclosed in May 2026, uses unresolved assessment uncertainty to support broad conditions for return: scheduled and unscheduled entry into Mother's home; a home "calm and safe enough" for ODHS and safety providers; compliance with unspecified directives of a safety provider; ODHS approval of persons entering Mother's home or having contact with A.D.; and a warrant-contingency plan. Those conditions may not be used to create the factual predicate that they are supposed to address. **A safety plan must manage an identified safety threat; it cannot operate as a means of compelling access in order to discover whether a threat exists.**

GAO should therefore determine whether the "reports of violence" referenced in the CF1149 resulted in a completed CPS assessment and if not, why not. If so, GAO should require ODHS to identify the assessment number, opening date, allegations, assessment activities, completion date, extension authority, safety decision, disposition, notice provided to Mother, and the specific factual finding that ODHS contends justified the Mother-specific conditions for return. Mother is entitled to information concerning the finding of a safety threat by the agency in her home so that both, that Mother has an opportunity to ameliorate any concerns as well as to pursue the appropriate administrative process to challenge such a finding. If no present- or impending-danger safety threat was identified, GAO should determine why ODHS did not close the assessment rather than maintain unresolved uncertainty as a basis for ongoing separation, home-access demands, and

conditions for return.

IV Agency Acting in Excess Of Delegated Authority

The cited in-home safety-plan criteria do not themselves establish that Mother presents a safety threat or that A.D. cannot safely return absent recurring entry into Mother's home. They describe the circumstances under which ODHS may determine that a *previously identified and documented* safety threat can be managed through an in-home safety arrangement. They do not create an independent substantive basis for continued substitute care, recurring home entry, or a conclusion that Mother is unsafe.

The required analytical sequence is therefore **not**:

ODHS seeks access → Mother declines unrestricted or recurring entry → therefore Mother's home is unsafe.

Rather, ODHS must first identify a particular present-danger or impending-danger safety threat; document the facts supporting that determination; explain how the threat is occurring within this particular family; identify the anticipated harm to A.D.; and use that information to develop the least intrusive plan capable of managing the identified threat. The criterion that the home be sufficiently calm to permit safety-service-provider access and safety activities to occur addresses whether an already-defined safety intervention can be implemented safely and practically. It does not convert a parent's refusal to permit unrestricted, recurring, scheduled, or unscheduled entry into abuse, neglect, present danger, impending danger, or an independent Mother-specific basis for continued substitute care.

The May 6, 2026 CF1149 does not supply that required factual sequence as to Mother. It states that Mother would not permit ODHS or safety providers into her home; refers generally to unspecified "reports of violence occurring in the home"; states that an assessment remained ongoing; and says that ODHS found it "challenging to determine" whether A.D. would be exposed to violence and risk if returned to Mother. Yet the CF1149 does not identify, as to Mother, the date of an alleged violent event; the reporting source; the child allegedly affected; the alleged actor; the alleged conduct; the relevant screening or assessment number; the date the assessment opened; the assessment activities undertaken; the assessment disposition; the completed safety decision; or the particular anticipated harm to A.D. that recurring scheduled and unscheduled home entry was supposedly designed to prevent.

The resulting reasoning appears circular unless ODHS can produce the missing predicate record. The CF1149 states that Mother's refusal to allow ODHS or unnamed safety providers into the home prevented assessment and monitoring; it then treats that lack of access as a reason the in-home criteria were not met; and it uses that conclusion to maintain out-of-home care and impose recurring scheduled and unscheduled entry as a condition of return. But an asserted inability to gather additional information is not itself a documented Mother-specific safety threat. A safety plan must manage an identified threat; it cannot use a demand for access to create the factual predicate required to justify the demand.

This is not an argument that ODHS could never request a home-based assessment or monitoring arrangement after identifying a documented safety concern. It is an argument that the agency must first establish and document the concern to which the requested access is rationally connected. The relevant administrative question is not whether ODHS would prefer to inspect Mother's home. It is whether ODHS can identify a concrete, current, Mother-specific safety threat; explain the factual basis and anticipated harm; and show why the particular access condition is necessary, proportionate, and capable of managing that identified threat rather than functioning as an open-ended means of seeking information the agency says it does not yet possess.

The reference to unspecified "reports of violence" requires particular scrutiny. If ODHS's concern was an allegation involving physical discipline, ODHS must identify the actual allegation rather than label it generically as "violence." Oregon law permits a parent or legal guardian to use reasonable physical force to maintain discipline or promote a child's welfare, unless the force constitutes statutory abuse. ORS 161.205. Oregon's child-abuse definition likewise excludes reasonable

discipline unless the discipline results in one of the statutorily identified abusive conditions. ORS 419B.005. Thus, an allegation involving a belt does not, without identification of the actual alleged conduct, context, evidence, claimed injury, assessment activity, safety analysis, and disposition, establish a present Mother-specific danger or justify an open-ended home-access condition.

Periodic entry into a residence also would not, by itself, establish whether a particular disciplinary event occurred at another time. If ODHS contends that recurring entry was necessary to manage a concern involving physical discipline, it should identify the exact report; the alleged event; the child involved; the alleged actor; the date and reporting source; any claimed injury or assault; the relevant CPS assessment and safety decision; the proposed frequency, duration, scope, and provider for home access; and the explanation connecting those activities to the particular alleged threat. Without that explanation, recurring scheduled and unscheduled entry functions less as a tailored safety intervention and more as an open-ended condition for obtaining information that ODHS states it does not yet have. [reference](7db21454-0ba8-4838-bfcf-ec183d4b6fd0)

The timing further confirms the need for administrative review. The February 2026 Family Report stated that “No Conditions for return have been determined.” The presently identified CF1149, effective May 6, 2026, is the first identified written document that expressly conditions A.D.’s return to Mother on recurring scheduled and unscheduled home access. Even assuming solely for purposes of administrative review that a particular home-based assessment or monitoring arrangement could properly be required after ODHS identified a documented safety threat, that later CF1149 cannot itself supply the missing factual predicate for the preceding months of continued separation. ODHS should be required to identify the contemporaneous Mother-specific condition on which it relied before May 6, 2026, the evidence supporting that condition, the anticipated harm to A.D., and the agency action that purportedly authorized continued substitute care before the access requirement was first reduced to writing.

This requested review is also consistent with the statutory requirement that reunification case planning bear a rational relationship to the jurisdictional findings. ODHS should not use later-created access demands, generalized assertions of non-engagement, or unresolved investigative uncertainty as substitutes for identifying the particular Mother-specific condition that the case plan is supposed to address.

V September 6 Release Reversal Requires a Record-Specific Explanation

The record requires ODHS to identify the specific Mother-related safety threat that caused the agency to reverse its stated plan to release A.D. to Mother on September 6, 2025. Mother states that Supervisor Heather Kitto informed her at approximately 5:40 p.m. that A.D. was at the hospital and would be released to Mother. Mother further states that, approximately 19 minutes later, at 5:59 p.m., ODHS reversed that position. The documented October 14, 2025 communication with ODHS records Mother’s report of that same 5:40 p.m. to 5:59 p.m. reversal.

Mother does not concede any allegation made against her in this dependency matter. However, for purposes of this administrative complaint, the relevant question is concrete: what information did ODHS receive between the reported 5:40 P.M. and 5:59 P.M. communications, and what specific present- or impending-danger safety threat did ODHS identify as to Mother because of that information?

The later allegation that Mother was involved in criminal activity interfering with her ability to parent does not itself explain the reported reversal. Mother’s criminal prosecution was already pending when Supervisor Kitto told Mother that A.D. would be released to her on September 6. Mother states that the prosecution arose from a September 18, 2024 arrest in which she was misidentified and that she remained unrepresented in that criminal matter as of September 6, 2025. Whether or not ODHS agreed with Mother’s position concerning that prosecution, the fact remains that the case existed before the agency’s initial stated release decision. GAO should require ODHS to identify what changed during that nineteen-minute period with regard to Mother’s criminal activity and why the already-pending prosecution allegedly would later become a child-safety barrier during the shelter hearing but was not a safety threat on the night ODHS initially indicated that A.D. could return to Mother.

A pending criminal matter is not, standing alone, a description of likely harm to A.D. If ODHS relied upon Mother's criminal case as part of a safety decision, it must identify: the specific conduct it attributed to Mother; the particular harm it believed A.D. was likely to suffer; the factual connection between that conduct and the anticipated harm; and the basis for treating the risk as current rather than speculative. The February 11, 2026 Family Report lists the allegation that Mother was involved in criminal activity that interfered with safe parenting, but it does not explain the actual mechanism of danger to A.D. The report instead identifies Mother's alleged lack of contact with ODHS as the asserted safety issue and states that no conditions for return had been determined.

Mother further states that she sought help from maternal family members when she learned A.D. was at the hospital. She contacted relatives who were familiar to A.D. and had played a significant role in A.D.'s upbringing. The record later identifies Marcus and Julia Taylor as A.D.'s relative resource caregivers, identifies Eric Taylor as an available maternal great-uncle, and confirms that ODHS placed A.D. in relative family foster care beginning September 7, 2025.

The issue is not whether the relatives were an appropriate substitute placement after ODHS assumed custody. The issue is whether ODHS considered the same available maternal-family support as a protective alternative before deciding that A.D. could not be released to Mother. ODHS cannot treat Mother's act of mobilizing family support as the basis for a successful relative placement while failing to explain why the same relatives, a protective action plan, an in-home safety arrangement, or other family-supported services allegedly could not address the particular Mother-specific safety concern ODHS claims existed at that time.

ODHS cannot convert Mother's refusal to accept newly imposed, access-centered CF1149 requirements into an independent basis for continued separation unless it identifies how that refusal is materially connected to a pleaded Mother-specific jurisdictional condition, identifies the current harm to A.D. supposedly resulting from it, and shows why the specific condition is necessary to address that harm.

Those conditions may not be used to create the factual predicate that they are supposed to address. A safety plan must manage an identified safety threat; it cannot operate as a means of compelling access in order to discover whether a threat exists. Nor may ODHS treat Mother's refusal to accept these later-created, access-centered demands as an independent basis for continued separation. The jurisdictional allegations pleaded against Mother concerned alleged parenting deficits, alleged failure to protect A.D. from Father, and alleged criminal activity interfering with parenting—not refusal of scheduled or unscheduled home entry, refusal of unnamed safety-provider directives, or refusal to permit ODHS to approve every person entering Mother's home or contacting A.D. If ODHS contends that Mother's refusal of any CF1149 condition now prevents safe return, ODHS must identify the pleaded Mother-specific condition to which that refusal is connected; the current harm to A.D. that is reasonably likely without the condition; the evidence supporting that conclusion; and why the particular condition is necessary and tailored to manage that harm rather than functioning as a new, unpleaded compliance requirement.

The sequence matters. The February 2026 Family Report stated that Mother was choosing not to have contact with ODHS and expressly stated that "No Conditions for return have been determined." The February 23, 2026 Review Judgment required contact, participation in previously ordered services, and warrant resolution. Only later did the May 2026 CF1149 impose recurring scheduled and unscheduled home access, broad compliance with safety-provider directives, agency approval of household contacts, and a warrant contingency. ODHS cannot transform Mother's refusal to accept post-jurisdiction, access-centered CF1149 demands into a new basis for continued custody without identifying the pleaded Mother-specific condition to which the demand relates, the current danger allegedly created by refusing it, and the evidence showing that the condition is necessary to make return safe. Case planning and services for the family must "[bear] a rational relationship to the jurisdictional findings that brought the child within the court's jurisdiction."³

GAO should determine whether ODHS used Mother's refusal to agree to those later demands as a substitute for proving that any pleaded Mother-specific jurisdictional condition remained current and created a nonspeculative risk of harm to A.D.

³See ORS 419B.343(1)(a)

It was only after Mother expressed that she was seeking the help of her family that ODHS presented as having an issue with this arrangement. The workers expressed to Mother that they were not able to release A.D. to just "anyone". Mother expressly informed them that A.D. was very familiar with her uncles and that they had been a great part of her upbringing and were not just "anyone". Critically, the agency stated no concerns for safety with regard to Mother's criminal prosecution on this night and would only later present the active prosecution to the court without stating the harm that it alleges is likely to be realized with respect to A.D.. There is absolutely no nexus as to the allegation that Mother is involved in criminal activity in such a manner that threatens a serious loss or injury to A.D. and the agency has never stated what that harm could be as it is required to do.

A ODHS' Irreconcilable Contemporaneous and Misleading Documentation

ODHS's own contemporaneous documentation disproves the Protective Custody Report's claim that Mother "couldn't be reached again ... for many hours." Worker Nicole Bennett documented a telephone call with Mother at 4:31 p.m. on September 6, 2025. During that call, Mother discussed transportation barriers and agreed to ODHS's proposal that another CPS worker transport her. Bennett documented a return-call attempt at 4:46 p.m., with voicemail left, and a second attempt at 5:28 p.m., again with voicemail left. At approximately 5:30 p.m., Mother called the hospital herself and was transferred to Bennett. Thus, the record documents continued contact within approximately one hour of the 4:31 p.m. call—not an inability to reach Mother "for many hours."

The discrepancy is material. The Protective Custody Report uses the claimed inability to reach Mother as part of ODHS's explanation for continued custody, the asserted inability to assess Mother's protective capacity, and the conclusion that no less restrictive safety arrangement was available. A record stating that Mother was unreachable for "many hours" materially overstates the documented contact gap and obscures that Mother reinitiated contact through the hospital and arranged immediate maternal-family support.

GAO should determine why the court-facing Protective Custody Report used "many hours" when the agency's own notes record contact at 4:31 p.m., return-call attempts at 4:46 p.m. and 5:28 p.m., and renewed Mother-initiated contact through the hospital at approximately 5:30 p.m. GAO should identify the report author, reviewer, supervisor, and any person who supplied or approved that wording; determine whether the report was corrected or reconciled before it was presented to the juvenile court; and require a record notation correcting the chronology if ODHS cannot substantiate the "many hours" assertion.

ODHS records show that Mother was reached at 4:31 p.m. on September 6, 2025; Bennett attempted return calls at 4:46 p.m. and 5:28 p.m.; and Mother reinitiated contact through the hospital at approximately 5:30 p.m. The statement that Mother could not be reached "for many hours" is not supported by the documented timeline and should be corrected, qualified, or explained through a record-specific finding. The issue is not merely whether the wording was imprecise. The issue is whether ODHS's post-custody report to the court materially overstated Mother's alleged unavailability in a narrative used to support continuing ODHS custody and to characterize Mother as uncooperative.

B Required Declaration Under ORS §419B.150 Is Missing

The September 8 Protective Custody Report is an after-the-fact report concerning a child already taken into custody, under ORS §419B.171. It is not, merely by being labeled or filed as an ORS §419B.171 report, the sworn or recorded declaration required when a person seeks a protective-custody order under ORS §419B.150(5).

The September 8, 2025 Protective Custody Report expressly identifies ORS §419B.171 as its statutory authority and states that A.D. was taken into protective custody by law enforcement. The report is therefore an after-the-fact custody report concerning an event that had already occurred, not self-evidently the particularized declaration required by ORS §419B.150(5) when a protective-custody order is sought.

ODHS should not be permitted to treat the existence of an ORS §419B.171 report as proof that it supplied the separate

statutory declaration required by ORS §419B.150(5). GAO should require ODHS to identify the actual declaration and declarant; whether the declaration was written or oral; the date, time, and method of verification; the precise emergency predicate; the particularized Mother-specific facts; and the contemporaneous least-restrictive-means analysis submitted to the judge.

ORS 419B.150(5) establishes a statutory check between ODHS's emergency exercise of custody and the juvenile court's authority to authorize that custody. ODHS must provide a signed declaration based on information and belief, stating with particularity why protective custody is necessary and why it is the least restrictive means available. The declaration requirement is not surplusage: it is the record-based mechanism through which the court can independently evaluate the agency's factual showing rather than merely adopt an agency conclusion. If ODHS contends that Nicole Bennett's September 8 report served both functions, it should identify the exact oath, declaration-under-penalty-of-perjury language, or recorded oral statement on which it relies. The form's citation to ORS §419B.171, its identification of law enforcement as the entity that took A.D. into custody, and its lack of an apparent declaration attestation require that explanation.

The declaration requirement in ORS 419B.150(5) serves as a statutory separation-of-functions safeguard. ODHS may exercise emergency custody only under narrowly stated emergency conditions; it must then give the juvenile court an accountable factual application, by written declaration or recorded oral declaration, that states with particularity why custody is necessary and why it is the least restrictive means available. The court's role is not to ratify an agency conclusion, but to independently review that defined factual showing.

Mother does not ask GAO to invalidate a judicial order. Mother asks GAO to determine whether ODHS created, preserved, and submitted the declaration required by ORS 419B.150(5) for the September 2025 custody event; identify the declarant, date and time, verification method, emergency predicate, Mother-specific facts, and less-restrictive alternatives considered; and determine whether ODHS instead relied on later reports, generalized safety concerns, or access-based demands that could not substitute for the required contemporaneous declaration.

The September 8 Protective Custody Report identifies law enforcement—not ODHS—as the actor who took A.D. into protective custody. Yet the report then relies on ODHS's own narrative to justify continued custody from Mother. The September 6 contact chronology attributed to ODHS worker Nicole Bennett should be audited against the report's assertion that Mother could not be reached again “for many hours” after approximately 4:31 p.m. Bennett's contemporaneous notes reflect repeated calls and texts throughout the afternoon, including documented activity at 4:46 p.m. and 5:28 p.m. GAO should determine whether the report accurately described the timing, substance, and availability of communications with Mother; whether it omitted material contact through the hospital or supervisor; and whether any asserted inability to engage Mother was overstated in the court-facing narrative.

If ODHS cannot identify a compliant declaration supporting the September 2025 protective-custody order, GAO should determine whether ODHS supplied the statutorily required factual application at all; whether the court was given a particularized, sworn or declared basis for necessity and least-restrictive means; and whether any later report was improperly treated as a substitute for the required contemporaneous declaration. The records must distinguish the law-enforcement officer who physically took A.D. into protective custody from the ODHS personnel who made, approved, documented, and presented the child-welfare decision to continue custody rather than release A.D. to Mother or use a less restrictive family-supported alternative.

VI Administrative Record of Removal and Continued Out-of-Home Placement

Mother disputes that ODHS had a documented factual, policy-compliant, or legally sufficient basis to remove A.D. from Mother's care or maintain A.D. outside Mother's care. For GAO purposes, Mother requests review of the contemporaneous agency records identifying the specific Mother-related safety rationale, the alternatives considered, and the records documenting the agency's decision-making at removal and during continued placement.

VII Missing Contemporaneous Safety, Assessment, and Case-Planning Record

Juvenile dependency jurisdiction under ORS 419B.100(1)(c) requires proof that a child's condition or circumstances expose the child to a current threat of serious loss or injury that is reasonably likely to be realized.⁴

"DHS does not prove a basis for dependency jurisdiction merely by establishing that one cannot be certain that a child's mother or father will be up to the task of parenting."⁵ When DHS relies on a parent's purported parenting deficits as a basis to petition for jurisdiction, "DHS must come forward with evidence sufficient to establish that the parent *in fact* has parenting deficits that create a current threat of serious loss or injury to the child that is reasonably likely to be realized."⁶ The Department must establish a nexus between the alleged risk-causing conduct and the asserted harm to the child; **identify the type, degree, and duration of the claimed harm; and prove a present, nonspeculative risk rather than only past harm or concern.**⁷ A parent's conduct that may negatively affect parenting does not, without the required connection to a current threat of serious loss or injury, necessarily support dependency jurisdiction.⁸

Mother does not concede that ODHS had a lawful factual or legal basis to take A.D. from Mother's care, to maintain A.D. in substitute care, or to impose any safety plan, service requirement, or return condition. Mother requests the contemporaneous records on which ODHS contends it relied to exercise authority at each distinct stage of the case. A later document or generic service checklist cannot retroactively supply a factual predicate that was absent when ODHS first sought and obtained emergency protective custody of A.D.

A The Identified Record Begins With a Generic Checklist and a Late Written Safety Plan

A.D. was taken into protective custody on September 6, 2025. The presently identified record includes a Mother service checklist dated October 8, 2025 and a CF1149 expressly titled *Ongoing Safety Plan*, effective May 6, 2026 and signed by ODHS May 14, 2026. The document does not contain Mother's signature. There has been no letter of expectations communicated by the agency with the absence of Mother's acceptance of the agency's safety plan.

The October checklist identifies broad items, including parent education, a parent trainer, family-time participation, participation in A.D.'s services, maintaining contact with ODHS, and compliance with criminal-release, probation, or parole conditions. On its face, it does not identify the specific Mother-attributable risk-causing behavior, condition, or circumstance that ODHS contended created the requisite present-danger or impending-danger threat; the evidence supporting that contention; the factual mechanism by which the alleged condition placed A.D. at risk; a written safety-management arrangement; safety providers; monitoring terms; time commitments; an explanation why an in-home alternative was inadequate; or a defined standard by which return could be evaluated.

Mother has not identified a contemporaneous record showing when the CF1149 or its Mother-specific conditions were first developed, reviewed, approved, entered in ODHS's system, and provided to Mother; ODHS's May 29 note indicates later email and registered-mail transmission, but should not be treated as proof of the plan's earlier development or timely delivery. It became effective approximately **242 days** after the September 6, 2025 custody event. The CF1149 requires of Mother to allow recurring scheduled and unscheduled access to Mother's home, a home sufficiently calm and safe for monitoring, compliance with safety-provider directions, restrictions concerning unapproved contacts, and a contingency plan for possible detention on outstanding warrants.

The issue is not semantic or merely administrative. The presently identified record remains legally insufficient to support ODHS's initial intervention as well as any continued separation of A.D. from Mother. ODHS should be able to identify the

⁴ *Dept. of Human Services v. C.J.T.*, 258 Or. App. 57, 61–62, 308 P.3d 307 (2013); *Dept. of Human Services v. A.W.*, 276 Or. App. 276, 278, 367 P.3d 556 (2016).

⁵ See *Dept. of Human Services v. M.F.*, 294 Or. App. 688, 698, 432 P.3d 1189 (2018).

⁶ *Id.* (emphasis in original; internal quotation marks omitted).

⁷ *C.J.T.*, 258 Or. App. at 62; *Dept. of Human Services v. S.D.I.*, 259 Or. App. 116, 121, 312 P.3d 608 (2013); *Dept. of Human Services v. A.L.*, 268 Or. App. 391, 397, 342 P.3d 174 (2015).

⁸ *Dept. of Human Services v. A.F.*, 243 Or. App. 379, 386–87, 259 P.3d 957 (2011).

contemporaneous evidence on which it contends it relied: the specific Mother-attributable risk-causing conduct, condition, or circumstance alleged to create a non-speculative, current threat of serious loss or injury that is likely to be realized; the factual basis for that allegation; the manner in which ODHS contended the alleged condition affected A.D.; the specific harm ODHS contended was reasonably likely to result; and any less-intrusive alternative considered before or during continued separation.

ODHS bore the burden at trial to establish a current, non-speculative threat of serious loss or injury to A.D. that was reasonably likely to be realized. A historical allegation, past harm, or generalized concern does not by itself establish the required present danger at the time of trial.⁹

The May 2026 CF1149 may state ODHS's later position. It does not retroactively establish the factual or legal predicate for the September 2025 intervention, nor does it independently establish a current, non-speculative threat throughout the period of continued separation. The presently identified record contains no document that supplies a Mother-specific, lawful basis for interfering with Mother's right to the care, custody, and control of her daughter.

B Assessment and Planning Records Must Be Identified

CF1149 states that ODHS had received reports of violence in Mother's home and that "the assessment is still ongoing," and that ODHS could not determine whether A.D. would be exposed to violence because of alleged noncooperation and lack of access. Yet it does not identify the report date, report number, opening date, expected completion date, approved extension, or final safety decision. It thereby indicates that an assessment or investigative premise concerning Mother may have remained \textit{unresolved} approximately eight months after the custody event.. GAO should determine whether the referenced assessment was opened before or after May 6, 2026; whether it was completed within the applicable agency timeline; and whether ODHS used pending or unverified information to impose or maintain Mother-specific return conditions.

ODHS must identify the assessment number; opening date; required completion date; each extension; the approving supervisor; the stated basis for any granted extension to complete the assessment; the assessment disposition; the safety decision; the final disposition notice; and any notice of review rights. The assessment-completion rule requires the Department to complete and document the CPS assessment within a particular time (notwithstanding supervisor-granted extensions), and expressly provides that assessment completion(s) may not interfere with timely development of the initial case plan after ODHS obtains temporary custody.¹⁰

ODHS must also identify every protective action plan, initial safety plan, ongoing safety plan, conditions-for-return document, case plan, revision, safety decision, supervisor consultation, and supervisor approval in effect between September 6, 2025 and May 14, 2026. For every document on which ODHS relies, it should identify the title, author, creation date, approval date, effective date, electronic-entry date, revision date, and date and method by which it the agency asserts it was provided to Mother.

C Early Case-Planning and Family-Engagement Records Are Not Identified

Even if a parent does not sign the case plan, ODHS must continue to develop the case plan from the protective-capacity assessment, provide a copy to the parent, and document the circumstances in which a signature cannot be obtained.¹¹ When a child remains in substitute care for more than 30 days, ODHS must schedule a Family Engagement Meeting between the thirtieth and sixtieth day of placement.¹² The rules also require the caseworker to determine and document conditions for return during development of the ongoing safety plan.¹³

⁹ *State v. S.T.S.*, 236 Or. App. 646, 654, 238 P.3d 53 (2010).

¹⁰ OAR 413-015-0475; OAR 413-040-0010.

¹¹ OAR 413-040-0010.

¹² OAR 413-040-0008(1).

¹³ OAR 413-040-0006(1).

In addition, OAR 413-015-0450 imposes a separate, time-specific duty when a caseworker is assigned during a CPS assessment or when an impending-danger safety threat is replaced or added during ongoing case management. Within five days, the caseworker must review the case history, documentation, and the actions and decisions of the most recent CPS assessment; review and update the ongoing safety plan and conditions for return as necessary; and document that review in the Department's electronic information system.¹⁴ The caseworker must also conduct reasonable inquiries to identify persons who may inform the Department's understanding of parental protective capacity and child safety; gather information concerning parental strengths, limitations, and the effect on child safety; evaluate existing and diminished protective capacities and readiness to change; identify available family, community, and other supports where possible; inform the parent of the Department's actions and decisions concerning alleged impending-danger safety threats, protective capacity, conditions for return, and the ongoing safety plan; and enter the resulting protective-capacity-assessment findings and conditions for return in the Department's information system.¹⁵

Accordingly, if ODHS relied on a newly identified or revised Mother-specific impending-danger safety threat to create, revise, or maintain the May 6, 2026 CF1149, ODHS should be able to identify the date that threat was added or replaced and produce the records demonstrating completion of each five-day activity. Those records should identify the case-history review; the assessment reviewed; the safety-plan and conditions-for-return review; the persons contacted; the information gathered concerning Mother's protective capacities; the family or community supports considered; the services or actions identified to reduce the alleged threat; the information given to Mother; the electronic-system entries; and the corresponding case-plan documentation. The presently identified CF1149 does not itself identify that required five-day review, the assessment number or disposition, the alleged reports of violence, the relevant participants, the protective-capacity findings, or a dated record of the required case-plan entry.

The current record identifies no initial Mother-specific case plan, Family Engagement Meeting notice, meeting record, participant list, family plan, conditions-for-return document, protective-capacity-assessment findings, or supervisor-approved exception for the period from September 6 through early November 2025. The Department's February 11, 2026 report states: "No Conditions for return have been determined."

The current record likewise does not identify the five-day review records required when ODHS assigned a caseworker during the CPS assessment or replaced or added an impending-danger safety threat during ongoing case management. ODHS should identify the date of each assignment, each alleged addition or replacement of an impending-danger safety threat, and the corresponding dated electronic-system entries showing review of the CPS history, assessment, ongoing safety plan, conditions for return, protective capacity, family supports, and case-plan documentation. If ODHS cannot identify those records, GAO should determine whether the required activities were completed and documented as required.

If ODHS contends that Mother did not sign an earlier case plan, it must identify the supervisor-approval date and produce the letter of expectations and copy of the case plan that OAR 413-040-0010(7)(b) required it to send within seven working days. The February 23, 2026 Review Judgment refers to expectations in a service agreement, letter of expectation, or case plan. ODHS must identify which document supplied those expectations, its full contents, its approval date, and the date, method, and proof of delivery to Mother.

D Contact Record Requires Reconciliation

The record reflects documented communication between Mother and ODHS in October 2025. ODHS materials record Mother's October 6 response to an email and David Milne's October 14 telephone conversation with Mother. The recorded October 14 call reflects Mother's stated desire to accept service and discussion of a time to meet.

The October 30, 2025 letter to the juvenile court nevertheless stated that ODHS had been unable to contact Mother and therefore could not work on moving A.D. back to Mother's home. ODHS should reconcile that representation with its own recorded email and telephone communications. In particular, ODHS should identify what written information,

¹⁴OAR 413-015-0450(5)(a).

¹⁵OAR 413-015-0450(5)(b), (6).

plan, meeting opportunity, service referral, or proposed safety arrangement it provided through the documented channels of communication; what precise request it made of Mother; and the records on which it relies to characterize Mother as unreachable, nonresponsive, uncooperative, or unwilling to plan.

E Removal-To-First-written-Return-Conditions Timeline

A.D. entered protective custody on September 6, 2025. The presently identified record contains a generic Mother service checklist dated October 8, 2025, but no identified contemporaneous Mother-specific protective action plan, initial safety plan, conditions-for-return document, or completed protective-capacity assessment governing Mother's reunification path. ODHS's February 11, 2026 Family Report stated that "No Conditions for return have been determined." The first presently identified written document expressly titled an Ongoing Safety Plan and containing Mother-specific return conditions is the CF1149 effective May 6, 2026—approximately 242 days after removal. GAO should determine what document or documented safety decision governed Mother's return path during the intervening period; when Mother was provided that document; and whether the required safety-planning, case-planning, conditions-for-return, and protective-capacity documentation was timely completed.

F Unidentified Witness Role and Foundation for Shelter Testimony

At the September 8, 2025 shelter hearing, ODHS presented Victoria Gallagher as the worker in court and called her as a sworn witness. The State's attorney asked for temporary custody and used the phrase "imminent threat of severe harm," but he was not sworn. Gallagher was sworn, but she did not identify herself as the declarant for an ORS 419B.150(5) application or explain the basis of her knowledge. Ms. Gallagher asked for temporary custody and substitute care and testified that Mother had not been cooperative with ODHS at the hospital, stated that mother *refused* to safety plan for her daughter, *refused* to pick A.D. up from the hospital, and did not appear to understand the asserted safety concerns. The hearing record, however, does not identify Ms. Gallagher's position, assignment, role in the September 6–8 response, source of knowledge for those assertions and whether or not she had ever spoken to Mother.

The presently identified contemporaneous records instead identify Nicole Bennett as the after-hours worker who received the initial referral and had hospital-related contact with A.D., and identify Wiengkhone Soumpholphakdy and Thomas Hodge as workers who attempted in-person contact with Mother on September 7. The Protective Custody Report is attributed to Bennett. The identified materials do not show that Gallagher was present at the hospital, communicated with Mother, interviewed A.D., participated in the initial protective-custody decision, authored the Protective Custody Report, or personally observed the conduct she characterized for the court.

Mother does not ask GAO to reassess the court's ruling or decide the legal admissibility of testimony. Mother requests an administrative, record-specific determination of whether ODHS accurately identified the source, foundation, and supervisory review of the factual statements presented through Gallagher at the shelter hearing. In particular, GAO should determine whether Gallagher testified from personal knowledge, from a review of specified agency records, from information provided by another employee, or from another source; and whether ODHS preserved records identifying that source.

G Requested Production and Determinations

Mother requests that GAO require ODHS to preserve, identify, and produce the following materials for September 6, 2025 through May 14, 2026:

1. Every protective action plan, initial safety plan, ongoing safety plan, safety-plan revision, case plan, service checklist, conditions-for-return document, safety decision, and related supervisor consultation or approval;
2. The contemporaneous documentation for each alleged present-danger or impending-danger threat, including the date identified, factual description, individual to whom it was attributed, asserted mechanism of danger, safety providers, monitoring terms, time commitments, parental agreement or nonagreement, and supervisory-review information;

3. The complete CPS-assessment record, including assessment number, opening date, completion due date, extension requests and approvals, extension rationale, supervisor identity, final disposition, safety decision, closure notice, and notice of review rights;
4. The initial case plan; all drafts, approvals, revisions, case-plan meeting notices, participant lists, service referrals, delivery records, letters of expectation, and documents showing the date, method, and content of delivery to Mother;
5. Every Family Engagement Meeting notice, invitation, participant list, attendance record, meeting notes, family plan, and supervisor-approved exception;
6. Every record created to comply with OAR 413-015-0450(5) and (6), including each dated review of case history, prior CPS assessment, ongoing safety plan, conditions for return, protective-capacity assessment, family and collateral inquiries, identified supports, parent notification, electronic-system entry, and case-plan entry;
7. The protective-custody report, declaration, petition materials, and factual record ODHS contends supported its authority to take A.D. from Mother and maintain substitute care, including the statutory predicate selected and less-intrusive alternatives considered;
8. For each occasion ODHS contends that an impending-danger safety threat was added, replaced, revised, or relied upon during ongoing case management, the date of that action; the person who made or approved it; the specific threat identified; the five-day completion deadline; and the documents or electronic-system entries showing timely completion of the required review and documentation activities;
9. All records concerning contact with Mother between September and October 2025, together with a written reconciliation of the documented email and telephone contact and the October 30 representation that ODHS had been unable to contact her; and
10. Every document identifying the specific Mother-attributable behavior, condition, or circumstance ODHS contends supported any continued restriction, and the factual basis ODHS contends linked that condition to a current safety threat involving A.D.

These records are necessary to determine whether ODHS had a documented factual and legal basis for its intervention when it acted; whether it complied with the applicable assessment, safety-planning, case-planning, notice, and family-engagement requirements; and whether it made reasonable efforts to make safe return possible. GAO should determine whether ODHS timely completed and documented the five-day review activities required by OAR 413-015-0450 after each relevant caseworker assignment and after each asserted addition or replacement of an impending-danger safety threat, including the required review of the ongoing safety plan and conditions for return, protective-capacity assessment, family-support inquiry, parent notification, electronic-system documentation, and case-plan documentation.

H Service and Default Record Requires Administrative Record Review

The service record contains an address discrepancy and documented channels of actual communication. The identified documents reflect the following:

1. The petition, summons, service request, and return of nonservice used 17458 NW Springville Rd., Apt. 9;
2. Other ODHS and DOJ service materials identify 17548 NW Springville Rd., Apt. or Unit 9, including the address returned by the CLEAR search and the address stated in the DOJ declaration as the location for attempted service;
3. The DOJ declaration states that a service packet was provided to Barrister Support Service for attempted service at 17548 NW Springville Rd., Unit 9, while the return attached to the summons and petition reflects an attempt at 17458;
4. The October 14 status-hearing record reflects email communication with Mother while Mother remained unserved; and

5. The October 2025 service materials themselves document an email response and a telephone conversation with Mother.

These documents require administrative review of the accuracy and completeness of ODHS's service-related records, diligent-efforts documentation, use of available communication channels, and court-facing representations concerning Mother's address, availability, responsiveness, and contact with the agency.

Mother does not contend that an address discrepancy alone resolves every service question or automatically vacates the October 31, 2025 judgment. Mother requests that GAO determine whether ODHS records accurately reflected the addresses known to the agency, the agency's documented email and telephone communications with Mother, the efforts actually undertaken to communicate with Mother, and the information ODHS or its representatives provided or relied upon when describing Mother as unserved, unavailable, nonresponsive, or evading service.

This request does not ask GAO to determine the legal sufficiency of service, to decide whether default was proper, or to modify, vacate, or otherwise disturb any juvenile-court order. It asks GAO to examine whether ODHS maintained, reviewed, reconciled, and accurately presented its own service-related and contact-related records, including records that may bear on agency representations to the court.

I Requested GAO Action Concerning the Record

Mother requests that GAO preserve, obtain, review, and issue written, record-specific findings concerning the safety-planning, contact, service-related, and default-related records identified above. These records are material to whether ODHS accurately documented what it claimed Mother needed to do for reunification; whether ODHS's reunification work was rationally related to a defined Mother-specific jurisdictional condition; whether ODHS timely provided Mother a written and individualized opportunity to understand and address asserted return barriers; and whether ODHS's service-related and contact-related records accurately reflected the information available to the agency. Mother requests that GAO determine, through the contemporaneous agency records:

1. When ODHS identified each present-danger or impending-danger threat;
2. Which threat, if any, ODHS attributed to Mother;
3. The facts ODHS relied upon to conclude that the threat was current;
4. How ODHS stated that the threat was occurring;
5. The protective action plan, initial safety plan, ongoing safety plan, or other written document used to manage the threat;
6. The safety providers, monitoring terms, time commitments, supervisory approvals, and delivery records associated with each plan;
7. The less-intrusive measures, family supports, voluntary relative placement, and in-home alternatives ODHS considered before maintaining out-of-home care;
8. The date and basis for the decision to impose Mother-specific conditions for return; and
9. The complete factual basis for treating Mother as unserved, unavailable, nonresponsive, or evading service while agency records documented email and telephone contact.

J Recorded Communications and Targeted Availability of Corroborating Materials

Mother has preserved recordings of selected communications with ODHS personnel, including communications with case-worker David Milne and ODHS leadership. Each of those recordings have been , together with contemporaneous text

messages, emails, agency notes, court materials, and other records, to track the chronology of agency decisions and to identify statements that may require reconciliation with ODHS's written record.

The recorded calls do not identify one stable, particularized Mother-specific safety finding that explains why A.D. could not return home. Rather, ODHS personnel invoked several different rationales at different stages: the reported September 2025 self-harm statement; Mother's alleged lack of engagement with the court and ODHS; refusal of in-home access; an unresolved assessment and unspecified reports of violence; outstanding warrants; and the existence of an ODHS custody order. The agency should identify which rationale it contends applied at each stage, the date and source of the underlying information, the assessment and safety decision supporting it, whether the information predated the September 2025 removal, and the objective conditions by which Mother can demonstrate safe return.

Mother is not submitting a complete archive of recorded communications or full transcripts with this supplement. The purpose of this notice is not to shift to GAO the burden of reviewing an undifferentiated collection of audio materials. Rather, it is to advise GAO that recordings exist and that Mother has relied on them in identifying discrete record-integrity questions, including the stated reasons for continued out-of-home placement, the characterization of Mother as unavailable or unengaged, the asserted basis for reunification barriers, and the agency's explanations concerning service, safety planning, home access, and conditions for return.

GAO should first obtain and review the Department's own contemporaneous records, including OR-Kids entries, contact notes, emails, texts, call logs, supervisory-consultation records, safety assessments, safety plans, conditions-for-return documents, case plans, and court-facing materials. Where an ODHS record is incomplete, inconsistent with another agency record, or does not identify the factual source for a material representation, GAO may request a narrowly identified recording, excerpt, transcript segment, or time-stamped summary relevant to that specific issue.

Mother will make non-duplicative recorded material reasonably available upon a focused request identifying: (1) the particular factual issue to be examined; (2) the ODHS record or representation requiring reconciliation; (3) the relevant approximate date or communication; and (4) the information sought. This approach preserves the recordings while allowing the review to remain proportionate, record-specific, and directed first to the information created, maintained, or relied upon by ODHS.

Nothing in this notice constitutes a waiver of confidentiality, privilege, evidentiary objection, or any right to determine the appropriate forum, scope, format, and conditions for any later production or use of a recording. Mother reserves the right to provide additional recordings, transcripts, excerpts, screenshots, or other corroborating materials as appropriate after reviewing ODHS's response and production.

Mother further requests that GAO preserve all relevant ODHS records and metadata; require a record inventory of safety decisions, protective action plans, safety plans, case plans, conditions-for-return documents, family-engagement records, assessment history, supervisory consultations, supervisory approvals, contact logs, email communications, telephone records, address-verification records, service-related records, and court-facing representations; and determine whether those records were timely created, maintained, reconciled, and accurately relied upon by ODHS.

GAO should issue written, record-specific findings identifying the responsible office or employee, the applicable policy or procedure, the relevant record or missing record, whether the record accurately and completely reflected the agency's information and actions, and any correction, notation of dispute, supervisory review, policy-compliance action, or other administrative action required.

Mother is not asking GAO to vacate, modify, or otherwise disturb any juvenile-court order. Mother reserves the right to use any records, agency responses, or GAO findings in any appropriate forum, including juvenile court, without asking GAO to decide the legal effect of those materials.

J Reservation of Civil Claims and Preservation of Evidence

Mother has provided a notice of claim concerning certain matters arising from ODHS conduct in this case. That notice is not incorporated into this administrative complaint as a request for monetary relief, settlement, adjudication of civil liability, or legal conclusions by the Governor's Advocacy Office.

Respectfully,

/s/ 

Ash Le' A. Penn

Mother, self-represented

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